



CHAPTER ii.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Ashton-in-Makerfield Burslem Newbury Southport and Ulverston. A.D. 1905.

[14th April 1905.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1905. Short title.

A.D. 1905.

SCHEDULE.

URBAN DISTRICT OF ASHTON-IN-MAKERFIELD.

*Ashton-in-Makerfield
Order.*

Provisional Order for altering the Ashton-in-Makerfield Local Board Act 1875 and certain Confirming Acts.

To the Urban District Council of Ashton-in-Makerfield ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Ashton-in-Makerfield (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Ashton-in-Makerfield (herein-after referred to as "the District") ;

38 Vict.
c. xxxviii.

43 & 44 Vict.
c. lxxxvi.

46 & 47 Vict.
c. cxxxvi.

56 & 57 Vict.
c. cxvii.

62 & 63 Vict.
c. cx.

And whereas there are in force in the District the unrepealed provisions of the Ashton-in-Makerfield Local Board Act 1875 (herein-after referred to as "the Local Act") as altered by the Ashton-in-Makerfield Order 1880 which is herein-after referred to as "the Order of 1880" and was confirmed by the Local Government Board's Provisional Orders Confirmation (Aber-avon &c.) Act 1880 the Ashton-in-Makerfield Order 1883 which is herein-after referred to as "the Order of 1883" and was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1883 the Ashton-in-Makerfield Order 1893 which is herein-after referred to as "the Order of 1893" and was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 9) Act 1893 (herein-after referred to as "the Confirming Act of 1893") the Ashton-in-Makerfield Order 1899 which is herein-after referred to as "the Order of 1899" and was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1899 (herein-after referred to as "the Confirming Act of 1899") and the Ashton-in-Makerfield Order 1904 which was confirmed by Parliament but does not affect the subject-matter of this Order ;

And whereas by the Local Act as altered by the Order of 1880 and the Order of 1883 the predecessors of the Council were empowered to borrow for the purposes of their gas undertaking sums amounting in the whole to the sum of twenty thousand pounds ;

And whereas by Article II. (1) of the Order of 1893 the predecessors of the Council were empowered with the sanction of the Local Government Board to borrow in addition to the amounts then authorised to be borrowed for the purposes of their gas undertaking such sums not exceeding in the whole the sum of fifteen thousand pounds as might be necessary for those purposes ;

And whereas it is expedient that the Council be empowered to borrow further moneys for the said purposes :

[5 EDW. 7.]

Local Government Board's
Provisional Orders Confirmation (No. 1) Act, 1905.

[Ch. ii.]

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act the Confirming Act of 1893 and the Confirming Act of 1899 shall be altered as follows that is to say :—

A.D.1905.

Ashton-in-Makerfield Order.

38 & 39 Vict.
c. 55.

Art. I. The Local Act as altered by the Order of 1880 the Order of 1883 the Order of 1893 and the Order of 1899 and the Confirming Act of 1893 so far as it relates to the Order of 1893 shall have effect as if in subdivision (1) of Article II. of the Order of 1893 the words "twenty-five thousand pounds" were substituted for the words "fifteen thousand pounds".

Increase of
borrowing
powers for pur-
poses of gas
undertaking.

Art. II. The provisions of Articles IV. to IX. of the Order of 1899 shall apply and have effect as if the additional borrowing power conferred by Article I. of this Order had been conferred prior to the date of that Order and Article X. of the Order of 1899 shall apply to the costs of any local inquiry held with reference to the purposes of this Order.

Application of
provisions of
Order of 1899.

Art. III. This Order may be cited as the Ashton-in-Makerfield Order 1905 and may be cited together with the Ashton-in-Makerfield Orders 1880 to 1904 as the Ashton-in-Makerfield Orders 1880 to 1905.

Short titles.

Given under the Seal of Office of the Local Government Board
this Twenty-third day of January One thousand nine hundred
and five.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

BOROUGH OF BURSLEM.

Provisional Order for altering the Burslem Local Board Gas
Act 1877.

Burslem
Order.

To the Mayor Aldermen and Burgesses of the Borough of Burslem ; —

And to all others whom it may concern.

WHEREAS the Borough of Burslem (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875 ;

And whereas the unrepealed provisions of the Burslem Local Board Gas Act 1877 (herein-after referred to as "the Local Act") as altered by the Burslem Orders 1886 and 1900 are in force in the Borough ;

40 & 41 Vict.
c. cviii.

A.D. 1905.

*Burslem
Order.*

And whereas by Section 10 of the Local Act the Burslem Local Board (herein-after referred to as "the Local Board") were empowered for the purposes of their gas undertaking to purchase take and hold (by agreement but not otherwise) in addition to the lands described in the schedule to that Act any lands and hereditaments not exceeding in the whole five acres which they might require for the purposes of their gasworks and gas undertaking but the Local Board were prohibited from using for the purpose of manufacturing gas or residual products any lands except the lands described in the said schedule ;

And whereas by Section 12 of the Local Act the Local Board were empowered to purchase the undertaking property and rights of the Burslem and Tunstall Gas Company and by Section 29 of the Local Act the Local Board were empowered subject to the provisions of that Act to maintain the then existing gasworks upon the lands upon which the same were erected and also to erect and maintain additional and other gasworks and to do all such acts as they might think proper for making and storing gas and to make and store gas accordingly and to manufacture and sell all products or residuum of any materials employed in or resulting from the manufacture of gas ;

And whereas all the powers rights duties capacities liabilities obligations and property of the Local Board under the Local Act are now exerciseable by attaching to or vested in the Corporation ;

And whereas by the Burslem Order 1900 the Corporation were empowered to use the land described in the schedule to that Order for all or any of the purposes of their gas undertaking including the manufacture and storage of gas and residual products ;

And whereas the Corporation have under the provisions of the Local Act purchased the additional land adjoining the existing gasworks which is described in the schedule to this Order for the purposes of their gas undertaking and it is expedient that they should be also empowered to use that land for all or any of the purposes of their gas undertaking as herein-after mentioned :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say :—

Additional
gas land.

Art. I. Notwithstanding anything contained in Section 10 of the Local Act the Corporation may use the land described in the schedule to this Order for all or any of the purposes of their gas undertaking including the manufacture and storage of gas and residual products as if that land had been included in the lands described in the schedule to the Local Act.

Short titles.

Art. II. This Order may be cited as the Burslem Order 1905 and the Burslem Orders 1886 and 1900 and this Order may be cited together as the Burslem Orders 1886 to 1905.

[5 EDW. 7.] *Local Government Board's* [Ch. ii.]
Provisional Orders Confirmation (No. 1) Act, 1905.

The SCHEDULE above referred to.

A.D. 1905.

*Burslem
Order.*

All that piece or parcel of land containing 846 square yards or thereabouts situate in Bradwell Street Longport in the Borough and adjoining to the south side of the gasworks of the Corporation together with the twelve cottages thereon known as Nos. 32 to 54 Bradwell Street aforesaid.

Given under the Seal of Office of the Local Government Board
this Eighteenth day of January One thousand nine hundred
and five.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

BOROUGH OF NEWBURY.

Provisional Order for altering a Confirming Act.

*Newbury
Order.*

To the Mayor Aldermen and Burgesses of the Borough of Newbury;—

And to all others whom it may concern.

WHEREAS the Borough of Newbury (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875;

And whereas the unrepealed provisions of the Newbury Borough Extension Act 1878 (herein-after referred to as "the Local Act") as altered by a Provisional Order of the Local Government Board dated the Twelfth day of March One thousand eight hundred and eighty and duly confirmed by Parliament (which is herein-after referred to as "the Order of 1880" but which does not affect the subject-matter of this Order) and by a Provisional Order (herein-after referred to as "the Order") dated the Thirtieth day of March One thousand eight hundred and ninety-three which was confirmed by the Local Government Board's Provisional Orders Confirmation (No 4) Act 1893 (herein-after referred to as "the Confirming Act") are in force in the Borough;

41 & 42 Vict.
c. clxxxiv.

43 & 44 Vict.
c. clxxxvi.

56 & 57 Vict.
c. cxv.

And whereas by Section 52 of the Local Act the Corporation were empowered to borrow for the purposes of that Act which included gasworks purposes the sum of twenty-five thousand pounds;

And whereas by Article I. of the Order the Corporation were empowered with the sanction of the Local Government Board to borrow such further sums

[Ch ii.] *Local Government Board's* [5 EDW. 7.]
Provisional Orders Confirmation (No. 1) Act, 1905.

A.D. 1905. not exceeding in the whole the sum of ten thousand pounds as might from
 time to time be necessary for the purposes of their gas undertaking including
 the provision of working capital in connexion with that undertaking ;

*Newbury
Order.*

And whereas it is expedient that the Corporation be empowered to borrow further moneys for the purposes of their gas undertaking :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Confirming Act so far as it relates to the Order shall be altered so as to provide as follows that is to say :

Increase of
borrowing
powers for pur-
poses of gas
undertaking.

Art. I. Article I. of the Order shall have effect as if the words "twenty thousand pounds" were substituted therein for the words "ten thousand pounds".

Short titles.

Art. II. The Order of 1880 may be cited as the Newbury Order 1880 the Order may be cited as the Newbury Order 1893 this Order may be cited as the Newbury Order 1905 and the said three Orders may be cited together as the Newbury Orders 1880 to 1905.

Given under the Seal of Office of the Local Government Board this
 Third day of January One thousand nine hundred and five.

(L.S.)

WALTER H. LONG President.
 S. B. PROVIS Secretary.

BOROUGH OF SOUTHPORT.

*Southport
Order.*

*Provisional Order for altering the Southport Improvement
 Act 1871 and a Confirming Act.*

To the Mayor Aldermen and Burgesses of the Borough of Southport ; —

And to all others whom it may concern.

WHEREAS the Borough of Southport (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875 ;

34 & 35 Vict.
c. cxi.

And whereas the unrepealed provisions of the Southport Improvement Act 1871 (herein-after referred to as "the Local Act") as altered by the Southport Order 1895 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1895 (which Order and

58 & 59 Vict.
c. lxxxvii.

[5 EDW. 7.] *Local Government Board's* [Ch. ii.]
Provisional Orders Confirmation (No. 1) Act, 1905.

Act are herein-after respectively referred to as "the Order of 1895" and "the Confirming Act of 1895") the Southport Order (No. 1) 1899 (herein-after referred to as "the Order of 1899") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1899 and the Southport Order 1903 (herein-after referred to as "the Order of 1903") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1903 and as altered by certain other Local Acts and Provisional Orders confirmed by Parliament which do not affect the subject-matter of this Order are in force in the Borough;

A.D. 1905.
—
Southport
Order.
62 & 63 Vict.
c. cx.
3 Edw. 7. c. lxi.

And whereas by the Local Act the Corporation were empowered to borrow money for gasworks purposes;

And whereas by Article II. of the Order of 1895 as altered by Article I. of the Order of 1899 and Article I. of the Order of 1903 the Corporation were empowered to borrow with the sanction of the Local Government Board and subject to the provisions of the Order of 1895 on the securities therein named for the purchase of gas cooking ovens stoves meters burners or other fittings or apparatus used in the supply or consumption of gas for cooking or heating purposes the sum of sixteen thousand five hundred pounds;

And whereas it is expedient that the Corporation should be empowered to borrow further moneys for the said purpose:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Act of 1895 shall be altered as follows that is to say:—

38 & 39 Vict.
c. 55.

Art. I. The Local Act as altered by the Order of 1895 the Order of 1899 and the Order of 1903 and the Confirming Act of 1895 shall have effect as if in Article II. of the Order of 1895 the words "thirty-one thousand five hundred pounds" were substituted for the words "sixteen thousand five hundred pounds."

Increase of
borrowing
powers for gas
purposes.

Art. II. This Order may be cited as the Southport Order 1905 and the Southport Orders 1895 to 1903 and this Order may be cited together as the Southport Orders 1895 to 1905.

Short titles.

Given under the Seal of Office of the Local Government Board this
Thirteenth day of January One thousand nine hundred and five.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

A.D. 1905.

URBAN DISTRICT OF ULVERSTON.

*Ulverston
Order.*

*Provisional Order for altering the Ulverston Local Board
Act 1874 and certain Confirming Acts.*

To the Urban District Council of Ulverston ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Ulverston (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Ulverston (herein-after referred to as "the District");

37 & 38 Vict.
c. cliv.

48 & 49 Vict.
c. lxii.

59 & 59 Vict.
c. xl.

And whereas there are in force in the District the unrepealed provisions of the Ulverston Local Board Act 1874 (herein-after referred to as "the Local Act") as altered by a Provisional Order of the Local Government Board dated the Fifteenth day of May One thousand eight hundred and eighty-five which is herein-after referred to as "the Order of 1885" and was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1885 by a Provisional Order of the Local Government Board dated the Twenty-fourth day of May One thousand eight hundred and eighty-six which is herein-after referred to as "the Order of 1886" and was duly confirmed by Parliament but does not affect the subject-matter of this Order and by the Ulverston Order 1895 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1895 (herein-after referred to as "the Confirming Act of 1895");

And whereas by Section 110 of the Local Act as altered by the Order of 1885 the predecessors of the Council were empowered to borrow for the purposes of that Act with respect to gas (including the provision of working capital) sums amounting in the whole to the sum of sixteen thousand pounds;

And whereas by subdivision (a) of Article I. of the Ulverston Order 1895 the Council were empowered with the sanction of the Local Government Board to borrow on the securities therein mentioned such further sums not exceeding in the whole the sum of five thousand pounds as might from time to time be requisite for the purposes of the gas undertaking of the Council;

And whereas it is expedient that the Council be empowered to borrow further moneys for the said purposes:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Act of 1895 shall be altered as follows that is to say:—

Increase of
borrowing
powers for pur-
poses of gas
undertaking.

Art. I. The Local Act as altered by the Order of 1885 and by the Ulverston Order 1895 and the Confirming Act of 1895 so far as it relates to that Order shall have effect as if in subdivision (a) of Article I. of the

[5 EDW. 7.] *Local Government Board's* [Ch. ii.]
Provisional Orders Confirmation (No. 1) Act, 1905.

said Order the words "twelve thousand pounds" were substituted for the words "five thousand pounds".

A.D. 1905.

*Ulverston
Order.*

Art. II. The Order of 1885 may be cited as the Ulverston Order 1885 the Order of 1886 may be cited as the Ulverston Order 1886 this Order may be cited as the Ulverston Order 1905 and the said Orders and the Ulverston Order 1895 may be cited together as the Ulverston Orders 1885 to 1905.

Short titles.

Given under the Seal of Office of the Local Government Board
this Sixteenth day of February One thousand nine hundred
and five.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

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